

25STCV26786 25STCV26786

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-18
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Case Number: 25STCV26786 Hearing Date: August 18, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

JOSEPH D. GILBERT,

Plaintiff,

vs.

FORD MOTOR COMPANY, et al.,

Defendants.

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CASE NO.: 25STCV26786

[TENTATIVE] ORDER GRANTING IN PART MOTION
TO COMPEL INITIAL DISCLOSURES

Dept. 506

8:30 a.m.

August 18, 2026

On September 11, 2025, Plaintiff Joseph D. Gilbert filed
this Song-Beverly action against Defendant Ford Motor Company.

On

June 1, 2026, Defendant filed a motion to dismiss, or in the alternative, to compel
Plaintiff's initial disclosures, document production, and deposition under Code
of Civil Procedure section 871.26, subdivisions (c), (f), and (g).

Plaintiff

has not provided the required initial disclosures. (Lippold Decl. ¶ 4.) Defendant noticed Plaintiff's deposition, but
he and counsel did not appear, so Defendant took a Certificate of Non-Appearance. (Lippold Decl. ¶¶ 5-7.)

Plaintiff's

counsel explains that they were "unable to produce Plaintiff for the deposition
because we could not reach him." (Smith Decl.

¶ 11.) Plaintiff's counsel explains some

failed attempts to contact Plaintiff through June 2026. (Smith Decl. ¶ 12.) Yet, Plaintiff's initial disclosures were due
no later than February 10, 2026, after Defendant's December 12, 2025 initial responsive
pleading. (See Lippold Decl. ¶¶ 3-4.) Plaintiff's counsel provides no explanation for

failing to timely provide initial disclosures by February 10, 2026.

Defendant's

motion is GRANTED IN PART. Plaintiff is ORDERED

to provide initial disclosures, initial document production, and initial deposition

within 30 days and attend mediation with Defendant within 90 days. (See Code Civ. Proc, § 871.26.) The request to dismiss the action is denied.

Defendant's

request for sanctions is GRANTED IN PART.

Plaintiff's counsel is ORDERED to pay total sanctions of \$3,000.00 to Defendant

within 15 business days. (See Code Civ. Proc,

§ 871.26, subds. (j)(1), (j)(2).)

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 18th day of August 2026

Hon. Thomas D. Long

Judge of the Superior

Court